

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503476	ORTEGA, AN INDIVIDUAL VS MARRIOTT INTERNATIONAL, INC.	MOTION TO COMPEL VERIFIED RESPONSES TO REQUEST FOR PRODUCTION, SET ONE, AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR PLAINTIFF'S ATTORNEY OF RECORD IN THE AMOUNT OF \$857.50 BY VISTANA CALIFORNIA MANAGEMENT, INC.

Tentative Ruling:

Motion to Compel Verified Responses to Request for Production, Set One, GRANTED in part.

Plaintiff to submit verified responses, without objection, to RFPs 1-2, 4-9, 11-16, and 29-30. Request for remainder is MOOT.

Sanctions in the amount of \$335 to be paid to Plaintiff's attorney within 30 days.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507057	GUILLAUME VS CITY OF CATHEDRAL CITY	DEMURRER ON COMPLAINT OF RONDA GUILLAUME BY CITY OF CATHEDRAL CITY, MICHAEL CONTRERAS

Tentative Ruling:

Special Demurrer for Uncertainty:

Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) A failure to specify what aspects of a complaint are uncertain generally results in a demurrer being overruled as to such grounds. (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal.App.3d 797, 809 (overruled on other grounds by *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328.))

Defendant argues that as to the 1st and 2nd causes of action, Plaintiff improperly combines multiple theories into single counts, by alleging discrimination based on her "sex, age, **and/or** disability or perceived disability—**and/or** the aggregation of two or more of those characteristics," (FAC ¶ 34) and harassment based on her "age **and/or** sex, **and/or** the aggregation of both of those characteristics." (*Id.* ¶39.) Defendants assert that these allegations obscure the elements of each claim, preserve "every theory in every combination until trial," and leaves Defendants to guess which theory they must answer.

While FEHA permits claims based on a “combination of two or more protected bases” (Gov. Code, § 12920), the “and/or” formulation prohibits Defendants’ ability to ascertain which of the distinct FEHA theories they must defend against.

General Demurrer:

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Civ. Proc. Code, § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pled, of facts which may be inferred from those expressly pled, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If a complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Disability-Related Claims 1st, 3rd, 4th and 5th Causes of Action:

To establish a prima facie case of disability discrimination under the FEHA, a plaintiff must show that she (1) suffered from a disability or was regarded as disabled, (2) was able to perform the essential functions of the job either with or without reasonable accommodation and (3) was subjected to an adverse employment action because of her disability. (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886; *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 432.)

FEHA defines “mental disability” to include any mental or psychological disorder or condition that “limits a major life activity.” (Gov. Code, § 12926, subd. (j)(1).) A condition “limits” a major life activity if it makes the achievement of it “difficult.” (*Id.*, subd. (j)(1)(B).) “Working” is a major life activity. (*Id.*, subd. (j)(1)(C).) Here, the complaint alleges that:

“Ms. Guillaume in early 2023 became overwhelmed and her **anxiety** rose rapidly as the days and weeks progressed. She experienced **heart palpitations (racing heart) due to the exacerbated stress and anxiety at work**, and she was afraid she *might* experience a heart attack or stroke. She visited the doctor at least once in 2023 about her psychological state and the physical manifestations in her **heart rate and elevated blood pressure**, noting that she was experiencing **acute stress** at work.

... Ms. Guillaume spent her evenings and weekends worrying about returning to work, to the point that she became physically **ill to her stomach** at times, in addition to her **elevated blood pressure and heart palpitations**. On multiple occasions, Ms. Guillaume informed Contreras that she was experiencing symptoms of **stress, such as high blood pressure**, and that it was taking a toll on her body.”

(Compl., ¶¶ 21, 22.) Defendants argue this is insufficient under *Higgins-Williams v. Sutter Medical Foundation*, which held that an employee's "inability to work under a particular supervisor because of anxiety and stress related to the supervisor's standard oversight of the employee's job performance does not constitute a disability under FEHA." (*Higgins-Williams v. Sutter Medical Foundation* (2015) 237 Cal.App.4th 78, 84.) Here, the allegations in the complaint attribute Plaintiff's stress to interactions with her supervisor Contreras. Plaintiff has not alleged facts showing her condition limits a major life activity independent of her interactions with Contreras. As currently pled, she does not allege a cognizable disability.

Gov. Code § 12940(n) requires that an employer must engage in a "timely, good faith interactive process...in response to a request for a reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition." A failure to engage in this process is a separate FEHA violation. (*Wilson v. County of Orange* (2007) 169 Cal.App.4th 1185, 1193.) There are no magic words to initiate the process, and the obligation arises once the employer becomes aware of the need to consider an accommodation. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.)

As discussed above, the nature of Plaintiff's alleged disability is unclear. Without a known disability, Defendant's duties under subdivision (n) are not triggered. What's more, the Complaint fails to plead a sufficient request for accommodation. Plaintiff's general disclosure to her supervisor Contreras that "she was experiencing symptoms of stress, such as high blood pressure" (Compl., ¶ 22) was insufficient to put Defendant City on notice of a need for accommodation. (*Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1248.) "Vague or conclusory statements revealing an unspecified incapacity are not sufficient to put an employer on notice of its obligations" under FEHA. (*Id.*) While a request for accommodation need not use any "magic words," it must make clear that the employee needs an adjustment/time off at work due to a medical condition. Plaintiff only stated that she "was experiencing" symptoms. (Compl., ¶ 22.) The complaint also pleads no other facts suggesting that her "experience" of the symptoms was a request for a medical leave. There are no allegations that Plaintiff requested leave or reasonable accommodation.

Harassment 2nd Cause of Action:

Under FEHA, it is unlawful for an employer "because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or military and veteran status, to harass an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract." (Gov. Code § 12940, subd. (j)(1).) To demonstrate a prima facie case of hostile work environment harassment, a plaintiff must demonstrate: (1) she is a member of protected class; (2) she was subject to harassment; (3) the harassment was based on the protected characteristic; (4) the harassment unreasonably interfered with work by creating an intimidating, hostile, or offensive work environment; and (5) defendant is liable. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.) Harassment requires conduct that is sufficiently severe or pervasive to alter the conditions of the victim's employment. (*Etter v. Veriflo Corp.* (1998) 67 Cal.App.4th 457, 464-65.) In the present case, Plaintiff alleges that she was suffered from harassment based on her age "and/or" sex but offers no factual support of what she actually suffered. She provides only conclusory allegations. The "piling

work... without guidance or realistic expectations” (Compl., ¶ 18), “a six-month deadline to complete the project” (*Id.*), the rejection to her “suggestion that a new employee be hired to handle public records requests” (*Id.*, ¶19), the denial of scheduling “do not disturb periods” requests, and the inquiry of why Plaintiff was not completing the work assigned (*Id.*, ¶24) are “personnel management actions” that do not come within the meaning of harassment. (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64-65.) As to the remaining conduct, the complaint alleges that:

“Contreras was observed to constantly **insult, intimidate, bully and belittle employees**, including Ms. Guillaume, as well as to **scream and use profanity toward employees** on an ongoing basis. With respect to Ms. Guillaume in particular, Contreras immediately attempted to use her as an abusive partner in crime of sorts, **insulting department employees to her in profane and often sexualized and/or discriminatory ways**, sometimes within hearing distance of other employees, and **asking for her to respond and/or support his statements.**”

(Compl., ¶ 16.) As pled, it fails to plead facts sufficient to show that the conduct is related to Plaintiff’s age or sex. The complaint alleges that Contreras engaged in this behavior toward employees generally and was not directed only at Plaintiff because of her age or gender. Similarly, Contreras’ question to Plaintiff asking “when she plans to retire” (Compl., ¶ 23) do not constitute severe or pervasive harassment based on age.

Failure to Prevent 6th Cause of Action:

Gov. Code §12940(k) creates a separate cause of action for failure to take reasonable steps necessary to prevent discrimination and harassment. The general elements include a duty of care, breach, causation and damages. (See *Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent claim if there is no underlying discrimination. (*Id.* at 284.) Here, and as discussed above, Plaintiff fails to adequately plead underlying claims for discrimination, harassment, and retaliation.

CFRA Violation 7th Cause of Action:

To state a CFRA interference claim, “an employee shall provide at least verbal notice sufficient to make the employer aware that the employee needs CFRA leave, **and** the anticipated timing and duration of the leave.” (C.C.R. tit. 2, § 11091(a)(1).)

Plaintiff alleges only that she informed Contreras of her stress and high blood pressure symptoms. This does not constitute a request for a finite period of a CFRA leave. (See *Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 455 [informing an employer of migraine headaches is not a request for CFRA leave].) Plaintiff needs to actually “asked for and was denied leave.” (*Id.*) There are no allegations that she has done so. Speaking generally about having stress and/or high blood pressure would not have alerted Contreras to the fact that Plaintiff was requesting leave to take care of a “serious health condition” that made Plaintiff unable to perform her job functions. (*Id.*)

As to the 1st and 2nd Causes of Action, Demurrer SUSTAINED for uncertainty and failure to state facts sufficient to constitute a cause of action, with leave to amend.

As to the 3rd, 4th, 5th, 6th and 7th Causes of Action, Demurrer SUSTAINED for failure to state facts sufficient to constitute a cause of action, with leave to amend.

Plaintiff to file amended complaint in 10 days.

Case Management Conference continued to 8.06.26. Parties are not ordered to file updated case management statements prior to the next hearing date.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2507057	GUILLAUME VS CITY OF CATHEDRAL CITY	MOTION TO STRIKE COMPLAINT OF RONDA GUILLAUME BY CITY OF CATHEDRAL CITY

Tentative Ruling: The court may strike any irrelevant, false, or improper matter inserted in any pleading; or, strike all or any part of any pleading not drawn or filed in conformity with the laws of this state. (Code Civ. Proc., § 436.)

Motions to strike can be used to attack the entire pleading, or any part thereof. (Code Civ. Proc., § 435; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (Code Civ. Proc., § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (Code Civ. Proc., §§ 435-436; *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Here, Defendant City moves to strike punitive damages against itself, citing Gov. Code §818 that a public entity is not liable for punitive damages. Plaintiff concedes this point in her opposition.

Motion to Strike GRANTED with leave to amend.

Plaintiff to file amended complaint within 10 days.

Case Management Conference continued to 8.06.26. Parties are not ordered to file updated case management statements prior to the next hearing date.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2509063	VEASEY VS SRACSO	MOTION FOR PROTECTIVE ORDER BY SRACSO, DAN GORE, MIKE TERMINI

Tentative Ruling: No tentative ruling. Hearing is continued to 7.15.26.

Each protective-order statute requires that the motion be “accompanied by a meet and confer declaration under Section 2016.040.” (CCP §§ 2030.090(a); 2031.060(a); 2033.080(a).) Section 2016.040, in turn, requires that the declaration state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (CCP §